

25STCV08385 25STCV08385

County: los-angeles

Division: Civil Law and Motion

Department: 307

Hearing date: 2026-06-25

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Case Number: 25STCV08385 Hearing Date: June 25, 2026 Dept: 307

17 TENTATIVE RULING 1:30 p.m., Thursday, June 25, 2026

TRINA

FORONDA v. LOS ANGELES UNIFIED SCHOOL DISTRICT, Case No. 25STCV08385

RULING ON

PLAINTIFF'S MOTION TO DEEM ADMITTED RFA, SET ONE SERVED ON DEFENDANT LAUSD:

The

motion to deem admitted RFA is DENIED. The District relies on the exception provision in CCP 2033.280, subd. (a)(1) and (2) reading:

The

court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in compliance with Sections ... 2033.230.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or reasonable neglect.

Section

2033.230 permits responses which contain partial objections.

Section

2033.280, subd. (c) can be argued to permit a late response, providing as follows

...

unless [the court] finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.

TIMELINE

4/21/26 Plt. serves via email requests for admission, set one (38 RFA), plus RFD, form interrogatories, special interrogatories, form interrogatories-employment law.

5/22/26 LAUSD asks for extension to 6/2. Request denied.

5/26/26 Due date for five discovery requests

5/26/26 District's counsel prepares responses, fails to e-serve

5/27/26 Plt's motion to deem admitted filed at 12:06 a.m.

5/28/26 District serves verified responses with objections; and requests that plt. take the motion off calendar.

The Court

finds that the RFA responses that the District filed on May 28, 2026 was in substantial compliance with section 2033.230. The responses are provided as an exhibit to plaintiff's reply.

Plaintiff

is not entitled to sanctions because the District's failure to timely serve its responses did not necessitate the motion. Plaintiff prepared the motion before the responses were due, probably based on the District's request on May 22 for a short continuance.